

[Session Name]

[Case Name]

eBundle Demo Case

Exported By Anikit Sharma

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01 {G2-4} {G2} {H2} P R O C E E D I N G S

02 (11.00 am)

03 HIS HONOUR: Thank you. Before we begin, can I just mention
04 two points.

05 First, to remind the parties that I would like
06 a copy of the chronology cross-referenced to the
07 bundles.

08 Also, I would like just a little help as to how the
09 bundles have been put together. They are certainly not
10 in chronological order; what order are they in?

11 MR JONES: It's a very good question, the sort of question
12 that I --

13 HIS HONOUR: The rules require a chronological bundle, and
14 it is quite difficult thinking -- well, I would like to
15 see the {A2-3} and {A3-4} to which that document is an
16 answer, and then you have to, by pure chance, go about
17 four bundles further on, which slightly ... (Pause)

18 But they have just been divided up with tabs.

19 MR JONES: I mean, one option is the parties assist you by
20 producing an agreed bundle -- hopefully when we have
21 done our written closings with reference in {A1-10} and
22 {A1-11}.

23 HIS HONOUR: I would be grateful. There was always a risk
24 anyway of seeing the document in two different places.

25 MR JONES: We'll secure that for you.

26 Could I ask your Honour, please, to take up the list
27 of issues. It can be found in {E2-34}.

28 In {B3-2}, there are two sets of lists of issues.

29 There's a case memorandum list of issues from the --

30 HIS HONOUR: The parties weren't able to agree on the list
31 of issues?

32 MR JONES: That's right, yes. Slightly --

33 HIS HONOUR: It's not unknown, Mr Jones.

34 MR JONES: The bank and the first defendant were able to
35 agree on what they thought were the list of issues.

36 HIS HONOUR: Of course. That goes without saying.

37 MR JONES: My learned friend took you to these yesterday in
38 relation to his submissions about the issue estoppel,
39 and made the point that the July 2003 dishonest
40 statement was not an issue.

41 I mean, that's absolutely right, because I'll
42 develop -- that's actually a point in our favour, but
43 perhaps, first of all, we could turn to {D2-12}.

44 HIS HONOUR: Yes.

45 MR JONES: This is within the claimant's list of issues,
46 just to see how narrowly focused the misrepresentation
47 issue in the 2001 trial was.

48 One can see that summarised at {A1-5}, and then in
49 the subparagraphs which go over the page.

50 It's very clear, just looking at what those issues

51 are, in terms of the representations made.

52 Starting at bundle {D1-9}, subparagraph 16.1.1:

53 "The claimant's capital would be protected and they
54 would not lose money ..."

55 In bundle {F1-5}:

56 "There was only a negligible chance the claimant's
57 capital would fail to appreciate ..."

58 HIS HONOUR: Yes.

59 MR JONES: These are all pre-contractual representations.

60 They are very much focused at the early stage.

61 If one turns to the list of issues by the parties,
62 one can see at {B3-19}, and then forward to page 10, for
63 example, in relation to the misrepresentation claim,
64 they are all focused on, again, pre-contractual
65 representations which have been relied on in the
66 re-amended particulars of claim.

67 I think my learned friend took you to those at
68 {A3-4} and {B2-4}.

69 Unless you would like me to, I don't propose to take
70 you back to the claimant's re-amended particulars of
71 claim.

72 HIS HONOUR: It's the protection point.

73 MR JONES: Protection, exactly. It's all about what was
74 said to induce the claimant to enter into these
75 products.

76 Again, I'll develop this further, but this is the
77 only focus of attention in terms of agency at that
78 point -- again, subject to what happens.

79 If I could open {C1-5}.

80 HIS HONOUR: {C1-5}, yes, I'm up to date with that.

81 MR JONES: Perfect.

82 Bundle {E2} should now be {E1} -- well, it's
83 19 pages on the PDF, but the last page is 25, and that's
84 been updated very recently.

85 I don't know if your Lordship has that last --

86 HIS HONOUR: No. What's come in recently in bundle {E4}?

87 MR JONES: Certainly I received it this morning. There is
88 a clip of about 8 or 12 pages, an email exchange and
89 a letter from the claimant a couple of days ago.

90 It sounds like Mr David is with us.

91 MR DAVID: Hold on one second. I'm on my telephone with the
92 technical support.

93 They say, first of all, I have to get online on my
94 telephone, and then they will do some magic to ensure
95 that I get on on my laptop.

96 So just for the technical support chap, do I now
97 come off the link on my telephone?

98 (Pause).

99 MR JONES: I don't know if it would be convenient to finish
100 off the housekeeping. I don't think Mr David will

101 accuse me of leaving him out.

102 **HIS HONOUR:** Yes.

103 **MR JONES:** So the final page of bundle {E5} is numbered 95.